

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1933

By: Sterling

AS INTRODUCED

An Act relating to nitrous oxide; providing definition; prohibiting the sale of nitrous oxide to persons under twenty-one; requiring proof of legal age; providing for enforcement; providing penalty; providing for imprisonment; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 465.22 of Title 63, unless there is created a duplication in numbering, reads as follows:

As used in this section, "nitrous oxide" means any of the following substances: N2O, dinitrogen monoxide, dinitrogen oxide, nitrogen oxide, or laughing gas.

1. No person, corporation, partnership, limited liability company, firm, or any other business entity doing business in this state shall sell or offer for sale nitrous oxide to any person under the age of twenty-one (21).

1        2. Any person, corporation, partnership, limited liability  
2 company, firm, or any other business entity doing business in this  
3 state selling, offering for sale, or distributing nitrous oxide  
4 shall require proof of legal age prior to allowing an individual to  
5 purchase or receive a shipment of nitrous oxide. Identification is  
6 not required of any individual who reasonably appears to be at least  
7 twenty-five (25) years of age. An individual's appearance shall not  
8 constitute a defense in any proceeding alleging the sale or  
9 distribution of nitrous oxide to an individual under the age of  
10 twenty-one (21) years old.

11        3. Any person, corporation, partnership, limited liability  
12 company, firm, or any other business entity doing business in this  
13 state who violates this section of law shall be guilty of a  
14 misdemeanor, and upon conviction shall be subject to imprisonment in  
15 the county jail for not more than one (1) year or a fine of not more  
16 than Five Hundred Dollars (\$500.00), or both such imprisonment and  
17 fine.

18        SECTION 2. This act shall become effective November 1, 2025.  
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